



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

FEB 29 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9343
(FOURTH REVISION)

EXPIRATION DATE: August 31, 2000

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Alcoa, Inc.
(formerly Aluminum Company of America)
Pittsburgh, PA
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of lithium in stainless steel DOT specification 51 portable tanks. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244.
5. BASIS: This exemption is based on the application of Alcoa, Inc., (formerly the Aluminum Company of America) dated July 31, 1998, submitted in accordance with § 107.109 and a subsequent letter dated February 1, 2000.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Lithium	4.3	UN1415	I

7. PACKAGING AND SAFETY CONTROL MEASURES: Packaging prescribed is a DOT Specification 51 portable tank constructed in accordance with ALCOA's drawing A-021892-RK dated September 24, 1984, and "Lithium Vessel Design Overview" dated October 4, 1984, submitted with the application.

FEB 29 2000

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire or accident.

d. Lithium metal must be in the solid state before being offered for transportation.

e. Each portable tank must be reinspected and retested once every year in accordance with 49 CFR 173.32 as prescribed for DOT specification 51 portable tanks. Pneumatic retesting at one and one-half times the design pressure is authorized in place of the required hydrostatic test.

f. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 9343".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

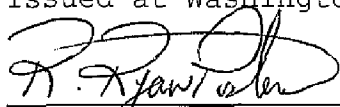
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



For Robert A. McGuire
Acting Associate Administrator
for Hazardous Materials Safety

FEB 29 2000

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA
PO: AM(00)